

CCRB INVESTIGATIVE RECOMMENDATION

Investigator: Rebecca Ho	Team: Squad #03	CCRB Case #: 201503452	☒ Force ☒ Discourt. ☐ U.S. ☐ Abuse ☐ O.L. ☒ Injury
Incident Date(s) Saturday, 04/25/2015 9:35 PM	Location of Incident: § 87(2)(b)	18 Mo. SOL 10/25/2016	Precinct: 46
Date/Time CV Reported Wed, 04/29/2015 1:50 AM	CV Reported At: IAB	How CV Reported: Phone	Date/Time Received at CCRB Fri, 05/01/2015 12:44 PM

Complainant/Victim	Type	Home Address
§ 87(2)(b)	§ 87(2)(b)	§ 87(2)(b)
§ 87(2)(b)	§ 87(2)(b)	§ 87(2)(b)

Witness(es)	Home Address
§ 87(2)(b)	§ 87(2)(b)
§ 87(2)(b)	§ 87(2)(b)
§ 87(2)(b)	§ 87(2)(b)
§ 87(2)(b)	§ 87(2)(b)

Subject Officer(s)	Shield	TaxID	Command
1. POM Paul Mccarthy	21020	932991	046 PCT

Witness Officer(s)	Shield No	Tax No	Cmd Name
1. POF Yudelca Burgos	08947	941267	046 PCT
2. POF Tricia Grant	16810	944610	046 PCT

Officer(s)	Allegation	Investigator Recommendation
A . POM Paul Mccarthy	Discourtesy: PO Paul McCarthy spoke rudely to § 87(2)(b)	A . Unsubstantiated
B . POM Paul Mccarthy	Force: PO Paul McCarthy used physical force against § 87(2)(b)	B . Exonerated

Case Summary

On April 29, 2015, § 87(2)(b) filed this complaint with IAB via telephone on behalf of her daughter § 87(2)(b) generating log 15-11294 [NYPD Document 01]. It was received at the CCRB on May 1, 2015.

On April 25, 2015, at approximately 9:35 p.m., officers responded to a call for additional units. In front of § 87(2)(b) in the Bronx, officers attempted to disperse a crowd that had gathered in the courtyard. § 87(2)(b) was in a heated argument with other individuals when officers told them to leave. The other party left while § 87(2)(b) and her friends remained in front of § 87(2)(b). PO Paul McCarthy approached § 87(2)(b) and repeatedly used the word “fuck” towards her (**Allegation A**). When PO McCarthy asked § 87(2)(b) for her identification, she refused to provide it. § 87(2)(b) continued to argue back and forth with PO McCarthy for her identification. § 87(2)(b) told PO McCarthy to not follow her when PO McCarthy ordered her to stop walking away from him. § 87(2)(b) resisted being placed into handcuffs and being placed into the RMP. The force applied by PO McCarthy resulted in § 87(2)(b) hitting her head on the frame of the vehicle (**Allegation B**). § 87(2)(b) alleged she sustained a large bruise and swelling to the top right side of her forehead.

Mediation, Civil and Criminal Conviction Histories

- On May 29, 2015, mediation was offered to and rejected by § 87(2)(b) § 87(2)(b)
- On June 30, 2015, a request to determine if a Notice of Claim was filed was submitted; confirmation from the Office of the Comptroller will be forwarded upon receipt.
- [§ 87(2)(b)] [§§ 86(1)(3)&(4)] [§ 87(2)(c)]

Civilian and Officer CCRB Histories

- This is the first CCRB complaint filed by § 87(2)(b) and § 87(2)(b) [Board Review 04].
- PO Paul McCarthy has been a member of the service for 12 years and there are 2 substantiated CCRB allegations against him.
 - In case 200714852 allegations of physical force and the refusal to provide his name and shield number were substantiated; charges were recommended and command discipline B was imposed.

Finding and Recommendations

Explanation of Subject Officer Identification

§ 87(2)(b) identified by PO Paul McCarthy by name from his nameplate and alleged he spoke rudely to her and used physical force against her in the course of her arrest. PO McCarthy acknowledged his role in the incident; § 87(2)(g)

Recommendations

- **Allegation A – Discourtesy: PO Paul McCarthy spoke rudely to § 87(2)(b)**

When § 87(2)(b) ignored officers' instructions to disperse, PO Paul McCarthy approached § 87(2)(b) and told her to "shut the fuck up" and "move away from the fucking building." PO McCarthy followed § 87(2)(b) as she walked away. § 87(2)(b) asked PO McCarthy why he was following her and PO McCarthy replied that he could do "whatever the fuck" he wanted to do. § 87(2)(b) retorted, "The way y'all talk, this is why y'all get killed nowadays. We're already moving." PO McCarthy told § 87(2)(b) he did not "give a fuck" and could do "whatever the fuck" he wanted. § 87(2)(b) replied, "Then I don't give a fuck." When PO McCarthy asked § 87(2)(b) for her identification, she refused to provide it as she left her property upstairs in her apartment. § 87(2)(b) argued with PO McCarthy regarding her identification. When PO McCarthy ordered her to stop walking away, § 87(2)(b) told PO McCarthy to not follow her. When PO McCarthy went to handcuff her, § 87(2)(b) told PO McCarthy not to touch her as only female officers were allowed to. PO McCarthy told § 87(2)(b) "I don't give a fuck if you're a woman or a man. I do what I want." After arresting § 87(2)(b), § 87(2)(b) told PO McCarthy to see what he did to her head and he replied, "I don't give a fuck."

PO McCarthy denied having used the words "fuck" or "fucking" to § 87(2)(b) in any context at any point during the incident. PO Burgos and PO Grant confirmed they did not hear PO McCarthy use the words "fuck" or "fucking" in any context towards § 87(2)(b).

§ 87(2)(g)
Therefore, it is recommended that **Allegation A** be closed as **unsubstantiated**.

- **Allegation B – Force: PO Paul McCarthy used physical force against § 87(2)(b)**

§ 87(2)(b) alleged PO McCarthy grabbed her by the neckline of her sweatshirt and that she jerked his hand away from her. Roughly four officers rushed over to assist in handcuffing her. § 87(2)(b) explained it "took a minute" for her to be handcuffed because she was resisting. Once handcuffed, she was picked up from the ground and carried to the RMP. § 87(2)(b) yelled she did not want to get in the vehicle because she had done nothing wrong. PO McCarthy grabbed § 87(2)(b) by the back of her sweatshirt to assist her in getting into the back seat of the vehicle. However, § 87(2)(b) leaned away from the vehicle to prevent herself from being placed into the vehicle. Consequently, the force applied by PO McCarthy resulted in § 87(2)(b) hitting her head on the frame of the vehicle. § 87(2)(b) alleged she sustained a large bruise and swelling to the top right side of her forehead.

PO Burgos explained that it took so long to handcuff § 87(2)(b) because § 87(2)(b) kicked officers in the legs numerous times and the bracelets on § 87(2)(b) arm prevented officers from properly handcuffing her. PO McCarthy did not recall pushing § 87(2)(b) into the RMP and did not recall her hitting her head at any point. PO Burgos and PO Grant denied witnessing the alleged force.

§ 87(2)(b) provided two photographs to the investigation of the injury to her forehead which she noted were taken after she was released from the stationhouse and prior to her visit to the hospital. No discernable marks or swelling are observed [Board Review 01].

Video footage provided by § 87(2)(b) friend, § 87(2)(b) shows PO Burgos, PO McCarthy, Sgt. Jason Saturnin, and Lt. Christopher LaGrasta taking over seventy seconds to handcuff § 87(2)(b). Individuals (unknown if civilian or officer) are heard yelling at § 87(2)(b) to stop resisting. Once handcuffed, § 87(2)(b) is carried by the officers to the RMP. However, the video footage does not show the force alleged by § 87(2)(b) [Board Review 02].

[REDACTED]

[REDACTED] [REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

Investigator:	<u> </u>	<u>Rebecca Ho</u>	<u>07/13/2015</u>
	Signature	Print	Date
Supervisor:	<u> </u>	<u> </u>	<u> </u>
	Title/Signature	Print	Date
Reviewer:	<u> </u>	<u> </u>	<u> </u>
	Title/Signature	Print	Date
Reviewer:	<u> </u>	<u> </u>	<u> </u>
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